NOW, as municipal law is a rule of civil conduct, commanding what is right, and prohibiting what is wrong; or, as Cicero[a], and after him our Bracton[b], has expreſſed it, *ſanctio juſta, jubens honeſta et prohibens contraria*; it follows, that the primary and principal objects of the law are RIGHTS, and WRONGS. In the proſecution therefore of theſe commentaries, I ſhall follow this very ſimple and obvious diviſion; and ſhall in the firſt place conſider the *rights* that are commanded, and ſecondly the *wrongs* that are forbidden by the laws of England.

RIGHTS are however liable to another ſubdiviſion; being either, firſt, thoſe which concern, and are annexed to the perſons of men, and are then called *jura perſonarum* or the *rights of perſons*; or they are, ſecondly, ſuch as a man may acquire over external objects, or things unconnected with his perſon, which are ſtiled *jura rerum* or the *rights of things*. Wrongs alſo are diviſible into, firſt, *private wrongs*, which, being an infringement merely of particular rights, concern individuals only, and are called civil injuries; and ſecondly, *public wrongs*, which, being a breach of general and public rights, affect the whole community, and are called crimes and miſdemeſnors.

THE objects of the laws of England falling into this fourfold diviſion, the preſent commentaries will therefore conſiſt of the four following parts: 1. *The rights of perſons*; with the means whereby ſuch rights may be either acquired or loſt. 2. *The rights of things*; with the means alſo of acquiring and loſing them. 3. *Private wrongs*, or civil injuries; with the means of redreſſing them by law. 4. *Public wrongs*, or crimes and miſdemeſnors; with the means of prevention and puniſhment.

WE are now, firſt, to conſider *the rights of perſons*; with the means of acquiring and loſing them.

[a] 11 *Philipp.* 12. [b] *l.* 1. *c.* 3.

NOW

NOW the rights of perſons that are commanded to be obſerved by the municipal law are of two ſorts; firſt, ſuch as are due *from* every citizen, which are uſually called civil *duties*; and, ſecondly, ſuch as belong *to* him, which is the more popular acceptation of *rights* or *jura*. Both may indeed be comprized in this latter diviſion; for, as all ſocial duties are of a relative nature, at the ſame time that they are due *from* one man, or ſet of men, they muſt alſo be due *to* another. But I apprehend it will be more clear and eaſy, to conſider many of them as duties required from, rather than as rights belonging to, particular perſons. Thus, for inſtance, allegiance is uſually, and therefore moſt eaſily, conſidered as the duty of the people, and protection as the duty of the magiſtrate; and yet they are, reciprocally, the rights as well as duties of each other. Allegiance is the right of the magiſtrate, and protection the right of the people.

PERSONS alſo are divided by the law into either natural perſons, or artificial. Natural perſons are ſuch as the God of nature formed us: artificial are ſuch as created and deviſed by human laws for the purpoſes of ſociety and government; which are called corporations or bodies politic.

THE rights of perſons conſidered in their natural capacities are alſo of two ſorts, abſolute, and relative. Abſolute, which are ſuch as appertain and belong to particular men, merely as individuals or ſingle perſons: relative, which are incident to them as members of ſociety, and ſtanding in various relations to each other. The firſt, that is, abſolute rights, will be the ſubject of the preſent chapter.

BY the abſolute *rights* of individuals we mean thoſe which are ſo in their primary and ſtricteſt ſenſe; ſuch as would belong to their perſons merely in a ſtate of nature, and which every man is intitled to enjoy whether out of ſociety or in it. But with regard to the abſolute *duties*, which man is bound to perform conſidered

ſidered as a mere individual, it is not to be expected that any human municipal laws ſhould at all explain or enforce them. For the end and intent of ſuch laws being only to regulate the behaviour of mankind, as they are members of ſociety, and ſtand in various relations to each other, they have conſequently no buſineſs or concern with any but ſocial or relative duties. Let a man therefore be ever ſo abandoned in his principles, or vitious in his practice, provided he keeps his wickedneſs to himſelf, and does not offend againſt the rules of public decency, he is out of the reach of human laws. But if he makes his vices public, though they be ſuch as ſeem principally to affect himſelf, (as drunkenneſs, or the like) they then become, by the bad example they ſet, of pernicious effects to ſociety; and therefore it is then the buſineſs of human laws to correct them. Here the circumſtance of publication is what alters the nature of the caſe. *Public* ſobriety is a relative duty, and therefore enjoined by our laws: *private* ſobriety is an abſolute duty, which, whether it be performed or not, human tribunals can never know; and therefore they can never enforce it by any civil ſanction. But, with reſpect to *rights*, the caſe is different. Human laws define and enforce as well thoſe rights which belong to a man conſidered as an individual, as thoſe which belong to him conſidered as related to others.

FOR the principal aim of ſociety is to protect individuals in the enjoyment of thoſe abſolute rights, which were veſted in them by the immutable laws of nature; but which could not be preſerved in peace without that mutual aſſiſtance and intercourſe, which is gained by the inſtitution of friendly and ſocial communities. Hence it follows, that the firſt and primary end of human laws is to maintain and regulate theſe *abſolute* rights of individuals. Such rights as are ſocial and *relative* reſult from, and are poſterior to, the formation of ſtates and ſocieties: ſo that to maintain and regulate theſe, is clearly a ſubſequent conſideration. And therefore the principal view of human laws is, or ought always to be, to explain, protect, and enforce ſuch rights as are abſolute,